



Publicity Waiver and Photo Release

Face Reality, LLC., a Delaware corporation, with offices located at 730 Camino Ramon, Danville, CA 94526 (the "Company") desires to use and publicize the name, likeness, and other personal characteristics and private information of the individual named below with a residence at the address set forth below ("I" or "me") for advertising, promotion, and other commercial and business purposes. By signing below, I give Company my permission for such use and publicity for such purposes, according to the terms and conditions set forth in this Publicity Waiver and Release ("Agreement").

I understand that in some circumstances the photographs may portray features that shall make my identity recognizable. I understand that I have the right to revoke this authorization in writing at any time, but if I do so it will have no effect on any actions taken prior to my revocation. I understand that the information disclosed, or some portion thereof, may be protected by law and/or the federal Health Insurance Portability and Accountability Act of 1996 ("HIPAA").

Please initial JUST ONE of the following:

____ ALL MEDIA EXCLUDING SOCIAL MEDIA: Photographs taken of me or parts of my body as well as details regarding services that I have received and/or products I may have used may be used in any print or broadcast media, including but not necessarily limited to newspapers, pamphlets, educational films, practice website, and television, in order to inform and educate the public or other providers about the Company's products and methods. In addition, Photographs taken of me or parts of my body as well as details regarding services that I have received and/or products I may have used may be used for educational materials, scientific presentations and/or publications.

____ ALL MEDIA INCLUDING SOCIAL MEDIA: Photographs and/or videos taken of me or parts of my body as well as details regarding medical services that I have received may be used on social media sites, including but not limited to Facebook, Instagram, Snapchat, Twitter, TikTok and other outlets, in order to inform the public or other providers about the Company's products and methods. In addition, Photographs taken of me or parts of my body as well as details regarding services that I have received and/or products I may have used may be used for educational materials, scientific presentations and/or publications. I understand that once my images are published, I lose control and rights to these images. I understand that once my images are published, the individual social media platforms may assume control and rights to those images. I also understand that images posted on the Internet can be altered and/or archived, and are permanent and searchable.

PLEASE REVIEW AND INITIAL EACH OF THE FOLLOWING:

____ REVOCATION: I understand that I may revoke this authorization at any time; however, such revocation must be in writing and received via registered mail. Revocation affects disclosure moving forward and is not retroactive.

____ EXPIRATION: This authorization expires 99 years from the date signed.

_____ VOLUNTARY CONSENT: I understand that my participation is voluntary. If I do not sign this form, my care plan and treatment will not be affected.

_____ I will not receive compensation for my participation, unless otherwise agreed upon.

_____ By signing this form, the personal health care information I relay or allow to be relayed to an outside source, such as social media platform or news source, is no longer protected by state and federal privacy laws and may be re-disclosed by that source.

_____ Company is and shall be the exclusive owner of all rights in the Images and Materials. I hereby irrevocably transfer, assign, and otherwise convey to Company my entire right, title, and interest, if any, in and to the Images and Materials and all copyrights and other intellectual property rights in the Images and Materials arising in any jurisdiction throughout the world in perpetuity, including all registration, renewal, and reversion rights, and the right to sue to enforce such rights against infringers.

_____ I have received a copy of this consent.

_____ Before signing this document, I have considered my decision carefully.

I hereby irrevocably permit, authorize, and license Company and its employees, officers, directors, affiliates, legal representatives, advertising agencies, promotion agencies, and fulfillment agencies, licensees, agents, successors and assigns, and those acting on Company's behalf ("Authorized Persons") the rights to display, publicly perform, exhibit, transmit, broadcast, reproduce, record, photograph, digitize, modify, alter, edit, adapt, create derivative works, exploit, sell, rent, license, otherwise use, and permit others to use my name, image, likeness, appearance, professional and/or personal biographical information, and other personal characteristics and private information (including my Instagram or other social media usernames or descriptions), and all materials created by or on behalf of Company that incorporate any of the foregoing ("Materials") in perpetuity throughout the universe in any medium or format whatsoever now existing or hereafter created, including but not limited to, in and on magazines, brochures and other print publications, electronic, magnetic, and optical media, motion pictures, television broadcast, cablecast, and satellite, radio broadcasts, display, point-of-sale, social media (as indicated above) and other advertising and promotional materials, press releases, the internet and other digital transmission or delivery methods, mobile applications, on any platform and for advertising, public relations, publicity, packaging, and promotion of Company and its affiliates and their businesses, products, and services for any purpose, including but not limited to advertising, public relations, publicity, packaging, and promotion of Company and its affiliates and their businesses, products, and services, without further consent from or royalty, payment, or other compensation to me as indicated above and without any notice to me, unless otherwise agreed upon.

I specifically consent to the use of my likeness, appearance and/or photographs or video depictions of me (the "Images") and the Materials with other images, text, graphics, film, audio, and audiovisual works. I acknowledge and agree that the Images may be altered or modified without any restrictions, whether by traditional photographic techniques or digitally, including but not limited to retouching, creating composite, blurred, or distorted representations, and changing color, size, shape, perspective, context, foreground, or background.

Company has no obligation to use the Images or to exercise any rights given by this Agreement. I acknowledge and agree that I have no right to review or approve the Images or the Materials, including

any written copy or other materials that may be used in connection therewith, before they are used by Company or at any other time, and that Company has no liability to me for any editing or alteration of the Images or the Materials, or for any distortion or other effects that may occur or be produced in connection with the taking of such Images or Company's processing, editing, alteration, transmission, display, publication, or other use of the Images or the Materials. Any acknowledgment or credit of me in connection with the Images or the Materials, if any, shall be determined by Company in Company's sole discretion.

To the fullest extent permitted by applicable law, I hereby irrevocably waive all legal and equitable rights relating to all liabilities, claims, demands, actions, suits, damages, and expenses, including but not limited to claims for copyright or trademark infringement, infringement of moral rights, libel, defamation, invasion of any rights of privacy (including intrusion, false light, public disclosure of private facts, and misappropriation of name or likeness), violation of rights of publicity, physical or emotional injury or distress, or any similar claim or cause of action in tort, contract, or any other legal theory, now known or hereafter known in any jurisdiction throughout the world (collectively, "Claims") arising directly or indirectly from the Authorized Persons' exercise of their rights under this Agreement or the production, exhibition, advertising, promotion, exploitation, or other use of the Images, and whether resulting in whole or in part by the negligence of Company or any other person, covenant not to make or bring any such Claims against any Authorized Persons and their agents, employees, and representatives, and forever release and discharge the Authorized Persons from liability under such Claims. I understand that Company is relying on this Agreement and will incur significant expense in reliance on this Agreement, and I agree that this Agreement cannot be terminated, rescinded, or modified, in whole or in part.

I represent and warrant to Company that I am at least eighteen (18) years of age, and I have full right, power, and authority to enter into this Agreement and grant the rights hereunder. I further represent and warrant to Company that I will provide only true and correct statements and other information in connection with this Agreement, and the Authorized Persons' use of the Images and Materials and the rights and license granted hereunder do not, and will not, violate any right (including without limitation copyright, trademark, trade secret, right to privacy, or right of publicity) of, or conflict with or violate any contract with or commitment made to, any person or entity, and that no consent or authorization from, or any payment to, any third party is required in connection herewith. I will defend, indemnify, and hold harmless the Authorized Persons from and against all Claims by third parties resulting from my breach or alleged breach of this Agreement or any of the foregoing representations and warranties.

This Agreement constitutes the sole and entire agreement of the parties to this Agreement regarding the subject matter herein, and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, regarding such subject matter. Company may assign this Agreement and its rights and obligations hereunder, in whole or in part, to any party. This Agreement shall be binding on and shall inure to my benefit and the benefit of Company and our respective heirs, executors, administrators, legal representatives, successors, and permitted assigns. All matters arising out of or relating to this Agreement shall be governed by and construed in accordance with the internal laws of the State of California without giving effect to any choice or conflict of law provision or rule (whether of the State of California or any other jurisdiction). Any claim or cause of action arising under this Agreement may be brought only in the federal and state courts located in Alameda County, California, and I hereby irrevocably consent to the exclusive jurisdiction of such courts

THIS AGREEMENT PROVIDES COMPANY WITH YOUR ABSOLUTE AND UNCONDITIONAL CONSENT, WAIVER, AND RELEASE OF LIABILITY, ALLOWING COMPANY TO PUBLICIZE, COMMERCIALY EXPLOIT, AND OTHERWISE USE YOUR LIKENESS AND NAME, FICTITIOUS NAME, OR SOCIAL MEDIA HANDLE, AS SET OUT ABOVE. BY SIGNING, YOU ACKNOWLEDGE THAT YOU HAVE READ AND UNDERSTOOD ALL OF THE TERMS OF THIS AGREEMENT AND THAT YOU ARE GIVING UP SUBSTANTIAL LEGAL RIGHTS, INCLUDING THE RIGHT TO SUE COMPANY OR SEEK DAMAGES IN ANY FORUM.

Signed: _____

Printed Name: _____

Address: _____

Telephone: _____

Email: _____

Dated: _____, 202_